

SENATE No. 3121

Senate, June 11, 2026 -- Text of the Senate amendment to the House Bill enhancing child welfare protections (House, No. 4646) (being the text of Senate document numbered 3111, printed as amended)

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

1 SECTION 1. Section 172 of chapter 6 of the General Laws, as appearing in the 2024
2 Official Edition, is hereby amended by striking out, in line 133, the words “2A of chapter 38”
3 and inserting in place thereof the following words:- 16 of chapter 18C.

4 SECTION 2. Chapter 6A of the General Laws is hereby amended by striking out section
5 16U, as so appearing, and inserting in place thereof the following section:-

6 Section 16U. (a) As used in this section, the following words shall have the following
7 meanings unless the context clearly requires otherwise:

8 “Child requiring assistance”, as defined in section 21 of chapter 119.

9 “Chronic absenteeism”, missing not less than 10 per cent of days enrolled regardless of
10 whether the absences are considered excused, unexcused or for disciplinary reasons.

11 “Community-based services”, services, including coordination of services, designed to
12 assist families requiring assistance so that, if appropriate, families may avoid entry or re-entry to
13 the child protective service and child requiring assistance legal systems; and children of the

family may continue to reside with their family and attend their community school while enjoying a strengthened relationship with their family.

“Family requiring assistance”, a parent, guardian, custodian, sibling and any relative or caretaker who (i) is at elevated risk of being the subject of a petition under section 24 of chapter 119; or (ii) is responsible for a child at risk of being the subject of a petition under section 39E of said chapter 119.

“Habitually absent without permission”, as defined in section 21 of chapter 119.

“Secretary”, the secretary of health and human services.

(b) Subject to appropriation or third party reimbursement, the secretary shall:

(i) establish a network of child and family service programs and family resource centers throughout the commonwealth to provide community-based services to families requiring assistance under subsection (c);

(ii) develop guidelines and standards necessary to achieve and maintain, on a statewide basis, a comprehensive and integrated network of community-based services and family resource centers for children and families;

(iii) promote efficiency by including in the network of community-based services and family resource centers access to the following services: (A) organizations that are part of the comprehensive community-based behavioral health delivery system coordinated by the secretary under section 16S; (B) organizations that provide services or have experience in coordinating access to community-based services such as local schools; (C) other local public agencies and private organizations; (D) local medical, behavioral or mental health care providers; and (E)

state-funded services the child or family may be eligible for, including services provided by agencies within the executive office of health and human services, the executive office of education, and the executive office of housing and livable communities.

(iv) coordinate the services provided by the network and in the family resource centers including, but not limited to, outreach, intake, screening, assessment and referral to services;

(v) encourage cooperation among local providers and state agencies as needed to provide the full complement of services required under this section;

(vi) monitor and provide technical assistance to family resource centers and providers of community-based services;

(vii) require the use of standard intake screening and assessment tools to evaluate families and children seeking community-based services that shall identify the family's strengths, resources and service needs including, but not limited to, mental health, behavioral health or substance abuse treatment, reasonable accommodations for individuals with disabilities, basic family shelter, clothing and food needs, child care needs, health insurance status, legal issues, education services and placement and child protection; and

(viii) create a data collection system for use by programs within the community-based services network and family resource centers that shall: (A) maintain the privacy of clients served, (B) assist programs and the secretary in identifying and addressing the needs of the population to be served, including gaps in service availability and how long clients are waiting to receive services; (C) collect information including, but not limited to, insurance status and benefit coverage of clients served, income documentation as needed to apply a sliding fee scale for payment or waiver of payment for services; (D) collect data regarding the needs identified

and services received by a family; and (E) collect such other information deemed necessary to assist the program and the secretary in providing services, identifying service needs and gaps and evaluating the effectiveness of family resource centers and the community-based services network.

Annually, the secretary shall submit a report to the senate and house committees on ways and means, the joint committee on children, families and persons with disabilities and the child advocate detailing: (i) the number of children and families served at each family resource center; (ii) identified service needs; (iii) the types of services offered in-house and those offered by referral; (iv) service outcomes; (v) service gaps, including unavailable services and services with long wait times; (vi) client feedback; (vii) the number of families served by a multidisciplinary team pursuant to subsection (c); and (viii) the number of children referred to a juvenile court for a child requiring assistance petition following a multidisciplinary team process. All data shall be delineated by the child's race, ethnicity, gender, sexual orientation, transgender status, disability, primary language, and age.

(c) The network of community-based services and family resource centers shall: (i) assist families so that, whenever possible, families may avoid entry or re-entry to the child protective service system and children may continue residing with their families in their home communities; (ii) assist families to enable children to continue as students in their community schools; (iii) strengthen the relationships between children and their families; (iv) assist families in connecting with local, state, and federal services to help meet basic family shelter, clothing, food and health needs; (v) provide coordinated, comprehensive, community-based services for children at risk of chronic absenteeism, dropping out of school, committing delinquent acts or engaging in behaviors that impede the likelihood of leading healthy, productive lives, or for

children who have been referred by a school or from the juvenile court pursuant to section 39E of chapter 119.

Services offered through the network shall include, but not be limited to, treatment for or assistance with: (i) eligibility determinations; (ii) applying for state services including MassHealth; (iii) financial assistance programs including Supplemental Security Income and services provided or funded by executive branch agencies; (iv) behavioral, medical and mental health needs; (v) substance use treatment; (vi) special education evaluation; (vii) remedial education services; (viii) assistance with insurance issues; (ix) mentoring; (x) family and parent support; (xi) civic engagement and community service; (xii) after school and out-of-school opportunities; (xiii) residential programs; (xiv) crisis management; and (xv) case management.

Each family resource center shall identify the service needs of each family in accordance with the requirements of subsection (b)(vii). Subject to appropriation, each family resource center shall assign a case manager to any high-needs families who voluntarily accept service. Said case manager shall assist the family in identifying and navigating appropriate services in the network. If a case meets the eligibility criteria for an interagency review of complex cases under section 16R, the family resource center shall refer the child to the interagency review team. For cases that do not meet the eligibility requirements under said section 16R, the family resource center may convene a multidisciplinary team to fulfill the functions listed in this subsection. Multidisciplinary teams shall consist of, but not be limited to the child, the child's parents or caregivers and family resource center staff, and when appropriate may include family partners, advocates, community-based service providers, educational advocates, representatives from state agencies or school district representatives. Multidisciplinary teams shall work to identify any

needs of the child or family with the goal of providing supports to the child and their family outside of the juvenile court process to the extent possible.

A case manager shall not refer a family to the juvenile court for the purpose of filing a child requiring assistance petition unless the family has exhausted all relevant community-based service options that are reasonably available to them. Family resource center staff shall be authorized to report to a probation officer upon request if a child that is the subject of an attempted child requiring assistance petition has met with a case manager pursuant to this section and if all relevant community-based service options reasonably available to them have been exhausted. Any other information about the child or family shall be kept confidential pursuant to subsection (d).

The secretary of health and human services shall issue guidance to effectuate this section. The guidance shall include, but not be limited to: (i) a description of situations in which convening a multidisciplinary team may be appropriate; (ii) the role of family resource center staff in facilitating the work of the multidisciplinary team; (iii) the circumstances under which staff from state health and human service agencies are required to participate and what that participation shall entail; (iv) the process by which disagreements about the case plan shall be resolved; (v) requirements for obtaining client or parental consent; (vi) processes for providing information to the juvenile court about a family's participation in services when the family or a school has filed a child requiring assistance petition; (vii) data gathering and reporting requirements; and (viii) protocols for when and how a family shall be referred to the juvenile court for a child requiring assistance petition.

(d) Any documentation of services provided to the child and family through the network of community-based services or in the family resource centers shall not be public records under clause Twenty-sixth of section 7 of chapter 4. Except as otherwise required by law, including laws related to the reporting of suspected abuse or neglect under section 51A of chapter 119, statements made by the child and family while receiving services from the network of community-based services shall be treated as confidential and shall not be used in any proceedings without the written consent of the person making the statement. Information about the child and family requiring assistance, including interactions with service providers and protected health information, may be shared among the case team, other providers of community services for families and any agency within the executive office of health and human services providing such services to the child as needed to coordinate treatment and provide appropriate case management, to the extent permitted under applicable federal law, unless the child or family declines in writing to permit such information sharing.

(e) Participation in community-based services and use of the family resource centers shall be under a voluntary agreement of the parent, legal guardian or custodian and the child; provided, however, that provision of community-based services may be contingent upon such parent, legal guardian or custodian agreeing to pay for such services or consenting to allow covered services to be billed to applicable third party payers, including insurance providers.

(f) A school administrator shall refer a student and their caregivers to a family resource center at the same time as the administrator notifies a student and the parent, legal guardian or custodian of the student that the student is at risk of expulsion for failure to comply with the lawful and reasonable rules of the school. After providing the process that is due to the student, including an expulsion hearing if requested under sections 37H and 37H1/2 of chapter 71, the

146 school administrator shall consider the outcome of the community-based services if the student
147 provides such outcome information to the school. After an expulsion is imposed, the student may
148 continue to provide information relative to the outcome of any community-based services
149 rendered, and the school administrator shall consider the outcome of any community-based
150 services rendered when such information is provided. Notwithstanding the outcome of any
151 community-based services, school districts shall make available to expelled students educational
152 services designed to lead to re-entry to a regular education program or to a high school diploma.

153 A school administrator shall refer a student's caregivers to a family resource center prior
154 to filing a child requiring assistance petition pursuant to section 39E of chapter 119. A school
155 shall make and document efforts to identify and address potential causes of chronic absenteeism,
156 including but not limited to previously unidentified or inadequately addressed special
157 educational needs, behavioral health needs, bullying, and harassment, before referring the child
158 and family to a family resource center for chronic absenteeism or filing a child requiring
159 assistance petition with the juvenile court.

160 (g) Nothing in this section shall diminish or interfere with the rights and protections
161 afforded to students with disabilities under federal and state special education laws.

162 SECTION 3. Section 6A of chapter 18B of the General Laws, as so appearing, is hereby
163 amended by striking out the fifth paragraph.

164 SECTION 4. Said chapter 18B is hereby further amended by inserting after section 6A
165 the following section:-

166 Section 6B. (a) The commissioner shall establish and maintain an education unit, which
167 shall: (i) implement and oversee the work of the regional offices and area directors on education

for children receiving services from the department, consistent with policies created by the department's education director; (ii) monitor student academic progress of children under the care and custody of the regional office not less than once per academic quarter; (iii) provide support and assistance to department social workers regarding educational needs of children; (iv) provide detailed training to department social workers on the best practices to monitor a child's education experiences, recognizing any unavailability of resources preventing a child from participating in school courses and developing individualized education programs and section 504 plans; (v) ensure the timeliness and accuracy of the transfer of education records detailing a child's educational background and needs; and (vi) maintain contact with appropriate local school districts and education organizations to facilitate the enrollment, information sharing and placement of children into school districts served by the area office.

(b) The commissioner shall appoint an education director. The education director's duties shall include, but shall not be limited to: (i) developing, implementing and overseeing the department's policies on education for children under the care and custody of the department, including policy development and practice guidance; (ii) monitoring state and federal laws, programs and resources that may impact the education of children under the care and custody of the department; (iii) advising the commissioner and all education specialists on all matters relating to education, strategic education initiatives, policy and practice management matters; (iv) coordinating efforts of the education specialists to identify and address systemic barriers to accessing educational services for children under the care and custody of the department, including issues related to transportation for children in department care or custody to attend their school of origin; (v) coordinating with area directors and regional offices on education related issues; and (vi) facilitating best practice training for education specialists. The education

191 director shall perform duties pursuant to this section and such other duties as may be assigned by
192 the commissioner.

193 (c) The director shall, subject to the approval of the commissioner, appoint education
194 specialists who shall be employees of the department and who shall devote their full time and
195 attention to supporting the department's goal of educational stability and success for all
196 elementary and secondary school students under the care and custody of the department.

197 (d) An education specialist may, to the extent permitted by federal law, accompany social
198 workers to meetings with school personnel, including, but not limited to, meetings relative to a
199 child's individualized education program or 504 plan.

200 SECTION 5. Section 7 of said chapter 18B, as appearing in the 2024 Official Edition, is
201 hereby amended by striking out subsections (e) to (o), inclusive, and inserting in place thereof
202 the following 11 subsections:-

203 (e) The commissioner shall develop and implement a plan for the orientation and training
204 of area-based and other staff. The plan shall require all employees to be issued photo
205 identification to be used in the performance of their duties, including for display upon
206 introduction.

207 (f) The commissioner shall coordinate the overall service planning of the department with
208 planning under Title XX of the Social Security Act, 42 U.S.C. 1397 et seq.

209 (g) The commissioner may apply for and accept on behalf of the commonwealth federal,
210 local or private grants, bequests, gifts or contributions.

(h) The commissioner shall, subject to chapter 30A, adopt rules and regulations necessary to carry out this chapter and chapter 119.

(i) The commissioner shall include in the budget estimates of the department funds for the development and implementation of said management information system, monitoring and evaluation system, annual needs assessment and staff training plan.

(j) The commissioner shall, subject to appropriation, enter into contracts with nonprofit organizations to provide services for families and individuals in emergency and transitional housing; provided, however, that the department shall, in entering into such contracts, provide \$3 for each dollar of donated funds that have been committed to such nonprofit organizations from any non-state source; and provided further, that for the purposes of this subsection, a non-state source may include private donations or monies from city, town or county governments but shall not include funds from other state agencies.

(k) Prior to undertaking any activity or implementing any policy that would affect expenditures for medical assistance under chapter 118E, including, but not limited to, identifying individuals eligible for such assistance under said chapter 118E, the commissioner shall ensure that such activity or policy is reviewed by the director of Medicaid.

(l) Not more than 3 per cent of the department's annual budget shall be appropriated in a separate account and expended for the purposes of subsections (b), (c) and (d).

(m) The commissioner shall consult with the commissioner of mental health prior to taking any action substantially affecting the design and implementation of behavioral health services for children under guidelines established by the secretary of health and human services under section 16S of chapter 6A.

(n) Upon receipt of a completed review of multiple 51A reports required under subsection (r) of section 51B of chapter 119, the commissioner shall immediately notify: (i) the district attorney for the county in which the child resides and for the county in which the event giving rise to a report occurred; (ii) local law enforcement authorities in the city or town in which the child resides and in the city or town in which the event giving rise to a report occurred; and (iii) the office of the child advocate.

(o) The commissioner shall require social workers employed by the department to obtain a license as a social worker pursuant to section 131 of chapter 112 within the first 9 months of employment. The commissioner shall require social workers employed by the department to participate in not less than 30 hours per year of paid professional development training; provided, however, that such training shall be consistent with applicable collective bargaining agreements. The commissioner may grant a social worker employed by the department a 1-time 6-month hardship waiver from the licensing requirement under this subsection to ensure access for underserved populations.

SECTION 6. Section 20 of said chapter 18B, as so appearing, is hereby amended by striking out the second sentence.

SECTION 7. Said chapter 18B is hereby further amended by striking out section 23, as inserted by section 45 of chapter 176 of the acts of 2008.

SECTION 8. Said chapter 18B is hereby further amended by striking out section 23, inserted by section 8 of chapter 321 of the acts of 2008, and inserting in place thereof the following section:-

Section 23. If the department has care and custody of a child receiving inpatient psychiatric services, the department shall: (i) contact the child's parents or guardians, as appropriate, and a member of the child's treatment team within 3 business days of the hospitalization; (ii) maintain weekly contact with them until the child is discharged; and (iii) immediately begin discharge planning, with the priority of returning the child to their home or to a community placement. Not later than 5 business days after being notified that continued hospitalization is no longer clinically appropriate, the department shall determine the appropriate type of placement for the child and immediately initiate the placement referrals. The department shall document its activities in assisting with discharge placement, including identification of available resources for home-based, community or alternative residential placements, and the barriers, if any, to discharge the child to the most clinically appropriate setting. If the initial placement is not deemed to be the most clinically appropriate setting, the department shall continue to seek an appropriate placement. Not later than 30 days after being notified that continued hospitalization is no longer clinically appropriate, the department shall refer the child to the interagency review team established pursuant to section 16R of chapter 6A.

SECTION 9. Sections 24 and 25 of said chapter 18B are hereby repealed.

SECTION 10. Said chapter 18B is hereby further amended by adding the following 3 sections:-

Section 26. (a)(1) Annually, not later than October 31, the department shall issue a report that provides an overview of the department's performance during the previous fiscal year. The report shall include comparative departmental information from prior fiscal years. The commissioner shall file the report with the governor, the child advocate, the clerks of the senate

and the house of representatives, the senate and house committees on ways and means and the joint committee on children, families and persons with disabilities. The commissioner shall provide the recipients of the report with an opportunity to discuss its contents with the department. The report shall be made publicly available on the department's website in accordance with section 19 of chapter 66; provided, however, that any personally identifiable information in the report shall be deidentified or removed prior to the report's publication on the department's website.

(2) The report required pursuant to paragraph (1) shall include, but shall not be limited to, narratives, information, data and analysis on the department's:

(i) counts, including, but not limited to: (A) case counts; (B) the number of children served by the department; (C) child demographic information, including age, race, ethnicity, primary language, birth sex, gender identity, sexual orientation and disability; (D) intersectional data; (E) rates of racial disproportionality and disparity at various decision points throughout the life of a case, including, but not limited to: (1) protective intakes and responses; (2) children ages 0 through 17 years, inclusive, with an open case as compared to the proportion of the child population in the commonwealth; (3) the number of children and youth in placement by placement type; (4) permanency plans for children and youth in placement, including plans meeting the federal permanency standard; (5) permanency outcomes as compared to children in placement; (6) the median placement length of stay, in days, for children who exited care as well as for children who were in out-of-home care; (7) placement moves per 1,000 placement days for children who entered care during the specified fiscal year; (8) exits from care to reunification, adoption and guardianship as a rate of all exits from placement; and (9) youth aging out as a rate of all exits from placement; (F) the number of requests for reasonable accommodations, broken

299 down by accommodation type; (G) the total number of disability related complaints filed with
300 the department, broken down by complaint type and region; (H) reports filed pursuant to section
301 51A of chapter 119; (I) placement metrics, including, but not limited to: (1) placement moves per
302 1,000 placement days for children who entered care during the specified fiscal year; (2) initial
303 placement with kin; and (3) the median number of placements between a home removal episode
304 and an initial placement review; (J) infants brought into the department's care pursuant to section
305 39½ of chapter 119; and (K) siblings in placement;

306 (ii) processes and outcomes, including, but not limited to: (A) protective responses and
307 safety outcomes including, but not limited to, maltreatment in foster care and supported
308 allegations of abuse and neglect for children in foster care by placement type; (B) the number of
309 fatalities, including the manner of death, of children with a family history with the department;
310 (C) permanency processes and outcomes, including, but not limited to, reunification, adoption,
311 guardianship, kinship adoption, kinship guardianship and aging out; (D) well-being outcomes,
312 including the rates and timeliness of the delivery of medical services; and (E) educational well-
313 being outcomes, including, but not limited to, school placement information, the number of
314 individualized education programs, attendance rates, high school graduation rates and school
315 disciplinary actions;

316 (iii) operations, including, but not limited to: (A) staffing trends; (B) caseloads; (C) the
317 department's budget, including funding levels; (D) service costs, including, but not limited to,
318 departmental foster care, contracted foster care, complex medical foster care, congregate care,
319 adoption and guardianship subsidies, foster care support services, respite and support and
320 stabilization; (E) medical services and advancements in providing medical services to children
321 and young adults in the department's care; (F) the number of children and young adults in the

department's care in emergency departments, inpatient units, psychiatric hospitals or community-based acute treatment programs who are awaiting alternate placements and the average duration of days waiting; (G) any new or ongoing initiatives to improve practices, procedures and policy of the department; and (H) the number and types of complaints received pursuant to section 23E of chapter 119; and (iv) support and stabilization services, including, but not limited to: (A) the total number of families who receive support and stabilization services; (B) the total number of service referrals for support and stabilization services; (C) the total number of families who receive more than 1 type of support and stabilization service; (D) the total number of referrals for intact families; (E) the total number of referrals for children in out-of-home placements; (F) the average length of time that support and stabilization services are provided; (G) the total number of provider agencies with support and stabilization services contracts; and (H) the total dollars expended on an annual basis for support and stabilization services, broken down by region.

(b) Not later than 45 days after the end of each fiscal quarter, the department shall issue a quarterly profile that shall be posted on its website in accordance with section 19 of chapter 66 that shall include, but not be limited to, departmental, regional office and area office data on: (i) the number of children served by the department; (ii) the number of reports filed pursuant to section 51A of chapter 119, including, but not limited to, the total number of reports received, screened-in and screened-out in total and by reporter role; (iii) rates and recurrence of maltreatment of children; (iv) department case counts, including the number of clinical and adoption cases; (v) child demographic information, including age, race, ethnicity, primary language, birth sex, gender identity and sexual orientation and disability; (vi) the number of

children and youth in placement by type of placement; and (vii) the number of children and youth not in placement.

(c) Annually, not later than October 31, the department shall file a report on services provided to young adults over the age of 18 with the child advocate, the clerks of the senate and the house of representatives, the senate and house committees on ways and means and the joint committee on children, families and persons with disabilities. The report shall include, but shall not be limited to: (i) a summary of the process by which a young adult may continue to receive services from the department upon reaching the age of 18; (ii) demographic information on young adults detailing age, race, ethnicity, primary language, gender identity, sexual orientation, disability and rates of racial disproportionality and disparity; (iii) the number of young adults who have elected to sustain or reestablish a connection with the department in the previous fiscal year; (iv) the number of young adults who have elected not to remain with the department and have transitioned out of the child welfare system in the previous fiscal year, including young adults who had previously elected to sustain a connection with the department, if such numbers are available; and (v) the number of transition-age young adults aging out of the child welfare system with: (A) stable and permanent housing; (B) full- or part-time employment or military enlistment; (C) health insurance; or (D) if sought, post-secondary education such as college, job training or a certificate program within 6 months of transition.

(d)(1) Annually, not later than October 31, the department shall file a report on its fair hearing processes and cases with the child advocate, the clerks of the house of representatives and the senate, the house and senate committees on ways and means and the joint committee on children, families and persons with disabilities. The report shall be made available to the public electronically in accordance with section 19 of chapter 66. The report shall include, but shall not

be limited to, information in a form that shall not include personally identifiable information on the fair hearing requests open at any time during the previous fiscal year. For each fair hearing request, the report shall provide: (i) the subject matter of the appeal; (ii) the outcomes of cases resolved prior to a fair hearing decision; (iii) the number of days between the hearing request and the first day of the hearing; (iv) the number of days between the close of the evidence and the hearing officer's decision; (v) the number of days of continuance granted at the appellant's request; (vi) the number of days of continuance granted at the request of the department; (vii) the number of days of continuance granted at the request of the hearing officer; and (viii) whether the department's decision that was the subject of the appeal was affirmed or reversed.

(2) The department shall maintain and make available to the public, during regular business hours, a record of its fair hearings in a form that shall not include personally identifiable information but shall include, for each hearing request: (i) the date of the request; (ii) the date of the hearing decision; (iii) the decision rendered by the hearing officer; and (iv) the final decision rendered upon the commissioner's review. For fair hearing requests that are pending for more than 180 days at any time during the fiscal year, except for those requests which have been stayed at the request of the district attorney, the report shall provide the number of such cases, the number of those cases that have been heard but not decided and the number of cases that have been decided by the hearing officer but for which a final agency decision has not yet been issued.

(e) Annually, not later than October 31, the department shall file with the child advocate, the clerks of the house of representatives and the senate and the joint committee on children, families and persons with disabilities a report on the foster care review system and any recommendations for its improvement, including, but not limited to: (i) the population served by

the department, including, but not limited to, case counts, child, youth and young adult and parent or caregiver counts and children, youth and young adults in placement; (ii) a foster care review overview, including, but not limited to, foster care review policy, the number of children, youth and young adults in placement with a convened foster care review and the foster care review considerations; (iii) scheduling, including, but not limited to, scheduled and convened foster care review meetings, children, youth and young adults reviewed, duration of meetings and timeliness of foster care review report completion; (iv) attendance, including, but not limited to, foster care review meeting panel composition and mandated participants invited and attended; (v) the review process, including, but not limited to, the department action plan, placement activities, social worker contact, parent-child visitation, health, education and well-being needs, information on youth and young adults and systemic barriers for children, youth and young adults and parents or caregivers; (vi) foster care review determinations; (vii) minority opinions, including, but not limited to, minority opinions by a panel member; and (viii) foster care review follow-up activities.

(f) If the department is unable to submit the report under subsection (a), issue the profile under subsection (b) or submit any other reports required pursuant to subsections (c), (d) and (e) by the respective deadlines, the commissioner shall notify in writing the governor, the child advocate, the clerks of the house of representatives and the senate, the house and senate committees on ways and means and the joint committee on children, families and persons with disabilities of the delay and provide an explanation for the delay.

(g) The department may satisfy the reporting requirements of subsections (c) through (e) by providing the requested information in the annual report filed pursuant to subsection (a). The department may substitute reports required by this section with data visualization tools that are

413 accessible and compliant with the Americans with Disabilities Act, 42 U.S.C. § 12101 et seq., as
414 amended.

415 Section 27. (a)(1) The commissioner shall notify the joint committee on children, families
416 and persons with disabilities when draft regulations are available for public comment. Such
417 notice shall be provided not later than the day that draft regulations are made public.

418 (2) Not later than 30 days after the promulgation of regulations or the effective date of
419 adopted or revised departmental policies related to services provided to children and families, the
420 department shall provide copies of such regulations or departmental policies to the joint
421 committee on children, families and persons with disabilities.

422 (b) Not later than 5 days after the end of each fiscal quarter, the commissioner shall
423 notify the senate and house committees on ways and means and the joint committee on children,
424 families and persons with disabilities when data from a profile issued pursuant to subsection (b)
425 of section 26 significantly departs from data reported in a previous profile.

426 Section 28. (a) The department shall establish a 5-year plan, on a fiscal year basis, that
427 shall include, but not be limited to, numeric targets for the department's performance in each
428 fiscal year and by region in the areas of safety, permanency and well-being. The plan shall
429 include a description of how the department will measure its progress toward meeting the
430 numeric performance targets and may include different performance targets by region. In
431 developing the plan, the department may consult with governmental and non-governmental
432 partners, as necessary. The department shall update the plan annually.

433 (b) Annually, the department shall measure its performance in meeting the numeric
434 performance targets established in the 5-year plan for the commonwealth as a whole and by

435 region. The department shall publish and maintain on its website a copy of the current 5-year
436 plan, the numeric and performance targets for previous years and the department's progress in
437 meeting those performance targets.

438 (c) If, in any fiscal year, the department is unable to comply with the requirements of
439 subsections (a) and (b), the department shall notify, as soon as practicable, the clerks of the
440 house of representatives and the senate, the house and senate committees on ways and means, the
441 joint committee on children, families and persons with disabilities and the child advocate.

442 SECTION 11. Section 1 of chapter 18C of the General Laws, as appearing in the 2024
443 Official Edition, is hereby amended by inserting after the definition of "Child advocate" the
444 following 2 definitions:-

445 "Child-serving individual", an individual who, in their professional role, has consistent
446 access to children and is often alone with children under the age of 18 or responsible for their
447 care; provided, however, that "child-serving individual" may be an employee, a contractor or
448 temporary employee at a public or private organization.

449 "Child-serving volunteer", a person who, without compensation or expectation of
450 compensation, provides services or supports in a capacity that involves direct contact with,
451 supervision of or responsibility for the care, education, treatment or welfare of children under the
452 age of 18 at a public or private organization, including, but not limited to, volunteers in schools,
453 childcare programs, youth-serving organizations, recreational or athletic programs, faith-based
454 programs, mentoring or tutoring services and residential or congregate care settings.

SECTION 12. Section 1 of chapter 18C, as so appearing, is hereby further amended by striking out the definition of “critical incident” and inserting in place thereof the following definition:-

“Critical incident”, (i) a fatality, near fatality or serious bodily injury or emotional injury of a child or the indecent assault and battery of a child under sections 13B to 13B¾ of chapter 265, inclusive, or the kidnapping or enticement of a child under sections 26 to 26D, inclusive, of said chapter 265, or the rape and abuse of a child under sections 23 to 23B, inclusive, of said chapter 265, who is in the custody of, or receiving services from, an executive agency or a constituent agency; or (ii) circumstances that result in a reasonable belief that an executive agency or a constituent agency failed in its duty to protect or adequately serve a child and, as a result, the child suffered or was at imminent risk of suffering serious bodily injury or emotional injury or death.

SECTION 13. Said section 1 of said chapter 18C, as so appearing, is hereby further amended by inserting after the definition of “Department” the following definition:-

“Emotional injury”, an injury or harm that occurs when a child of any age witnesses the fatality or life-threatening incident of an individual as a result of an unexpected medical event, overdose, violent act or accident, suicide or attempted suicide.

SECTION 14. Said section 1 of said chapter 18C, as so appearing, is hereby further amended by striking out the definition of “Executive agency” and inserting in place thereof the following 2 definitions:-

“Executive agency”, a state agency within the office of the governor that provides services to children, through direct services, guidance, oversight, contracted services and

licensing functions; provided, however, that executive agencies shall include the executive office of education, the executive office of public safety and security, the executive office of health and human services, and their constituent agencies, the Massachusetts interagency council on housing and homelessness and the executive office of housing and livable communities; and provided further, that constituent agencies shall include, but not be limited to, the department of children and families, the department of youth services, the department of public health, the department of mental health, the department of developmental services, the department of early education and care and the department of elementary and secondary education.

“Near fatality”, an injury that is: (i) accidental or the result of a medical condition, attempted suicide or abuse or neglect; and (ii) certified by a physician to be life threatening.

SECTION 15. Said section 1 of said chapter 18C, as so appearing, is hereby further amended by striking out the definition of “serious bodily or emotional injury” and inserting in place thereof the following 2 definitions:-

“Serious bodily injury”, an injury which involves: (i) a substantial risk of death; (ii) extreme physical pain, protracted and obvious disfigurement; or (iii) protracted loss or impairment of the function of a bodily member, organ or mental faculty.

“Sudden unexplained pediatric death”, the sudden and unexpected death of an child under the age of 3 where the cause of death cannot be determined before an investigation.

SECTION 16. Section 2 of said chapter 18C, as so appearing, is hereby amended by striking out, in lines 2 and 3, the words “independent of any supervision or control by any executive agency.” and inserting in place thereof the following words:- an independent state agency that shall not be subject to the supervision or control of any other executive office,

executive agency or constituent agency, commission, board, bureau or political subdivision of the commonwealth. The office shall oversee the services that executive agencies or constituent agencies provide to children in the commonwealth.

SECTION 17. The first paragraph of said section 2 of said chapter 18C, as so appearing, is hereby amended by striking out clauses (c) to (e), inclusive, and inserting in place thereof the following 6 clauses:-

(c) examine, on a systemwide and individual case basis, the care and services that executive agencies or constituent agencies provide to children through direct services, guidance, oversight, contracted services and licensing functions.

(d) advise the public and those at the highest levels of state government about how the commonwealth may improve its services to and for children and their families;

(e) examine disproportionalities in the provision of services to children related to race, ethnicity, disability status, transgender status, sexual orientation or gender identity; provided, that the office shall use data provided by executive agencies or constituent agencies related to the provision of services provided by the executive agencies or constituent agencies;

(f) subject to appropriation, partner with executive agencies, constituent agencies or other entities if it is in the best interest of the children of the commonwealth to: (i) support programs, including establishing pilot programs; and (ii) expand or improve current programs; provided, however, that the child advocate shall not enter into any partnership that may jeopardize the office's oversight functions;

519 (g) provide training and technical assistance to executive agencies and constituent
520 agencies to improve services to children if it is in the best interest of the children of the
521 commonwealth; provided, however, that the child advocate shall not provide training or technical
522 assistance that may jeopardize the office's oversight functions;

523 (h) maintain a publicly available website that shall make materials available for mandated
524 reporters, child-serving individuals and child-serving volunteers, including, but not limited to,
525 trainings and online certification of completion of said trainings, guidance, statutory references,
526 resources for individuals and families and best practices; provided, however, that such materials
527 shall include information about: (i) recognizing the signs of child neglect or abuse; (ii)
528 preventing, identifying and reporting child sexual abuse and problematic sexual behaviors
529 between minors; (iii) the ways in which the behavioral and verbal cues for sexual abuse differ
530 from those of other forms of abuse and neglect; (iv) bias and cultural considerations; (v) how to
531 address concerns with families and children when concerns do not rise to the level of
532 maltreatment; (vi) connecting families with needed supports and resources; (vii) how to
533 understand what may qualify as neglect; and (viii) options for voluntary or mandatory reporting.;
534 and

535 (i) create and maintain information and a list of publicly available resources for parents
536 who have experienced a sudden unexplained pediatric death; provided, however, that such
537 information shall include, but not be limited to, resources to obtain genetic testing, ongoing
538 bereavement support, counseling and grief support

539 SECTION 18. Section 3 of said chapter 18C, as so appearing, is hereby amended by
540 adding the following new paragraph:-

541 The child advocate’s annual salary shall be 90 per cent of the salary of the chief justice of
542 the supreme judicial court.

543 SECTION 19. Section 4 of said chapter 18C, as so appearing, is hereby amended by
544 striking out the last paragraph.

545 SECTION 20. Subsection (a) of section 5 of said chapter 18C, as so appearing, is hereby
546 amended by inserting after the first sentence the following sentence:- Notification shall include
547 demographic information of the child involved in the critical incident, if known.

548 SECTION 21. Said section 5 of said chapter 18C, as so appearing, is hereby further
549 amended by striking out, in lines 5, 8, 16, 19 and 21, the word “his”, each time it appears, and
550 inserting in place thereof, in each instance, the following word:- their.

551 SECTION 22. Said section 5 of said chapter 18C, as so appearing, is hereby further
552 amended by striking out, in lines 6 and 18, the word “he”, each time it appears, and inserting in
553 place thereof, in each instance, the following word:- they.

554 SECTION 23. Said section 5 of said chapter 18C, as so appearing, is hereby further
555 amended by striking out, in line 25, the word “his” and inserting in place thereof the following
556 words:- the office’s.

557 SECTION 24. Said section 5 of said chapter 18C, as so appearing, is hereby further
558 amended by striking out, in line 28, the word “him” and inserting in place thereof the following
559 words:- the child advocate.

SECTION 25. Said section 5 of said chapter 18C, as so appearing, is hereby further amended by inserting after the word “services”, in lines 43 and 44, the following words:- , access to support for parents of a child who have experienced a sudden unexplained pediatric death.

SECTION 26. Said section 5 of said chapter 18C, as so appearing, is hereby further amended by adding the following 2 subsections:-

(i) Prior to publicly releasing a final report related to an investigation where the child advocate makes a determination that there is a reasonable belief that an executive agency or a constituent agency failed in its duty to protect or adequately serve a child, the child advocate shall submit a copy of the final report to the governor, the attorney general, the auditor, the speaker of the house of representatives and the senate president.

(j) The department shall inform the child advocate as soon as practicable when a foster care review safety alert has been issued. The office shall review the circumstances of the foster care review safety alert and provide feedback to the department on individual cases and trends in services.

SECTION 27. Section 6 of said chapter 18C, as so appearing, is hereby amended by striking out, in line 1, the word “his” and inserting in place thereof the following word:- their.

SECTION 28. Section 9 of said chapter 18C, as so appearing, is hereby amended by striking out, in line 2, the word “his” and inserting in place thereof the following word:- their.

SECTION 29. Section 10 of said chapter 18C, as so appearing, is hereby amended by inserting after the figure “5”, in line 7, the following words:- , data related to the mandated

reporter training and website pursuant to subsection (h) of section 2, any examination of systemwide challenges pursuant to section 11.

SECTION 30. Said chapter 18C is hereby further amended by striking out section 11, as so appearing, and inserting in place thereof the following section:-

Section 11. The child advocate may examine systemwide challenges to providing adequate services to children. The child advocate may prioritize the examination of challenges that: (i) include multiple executive agencies or constituent agencies; and (ii) affect the most vulnerable children. Systemwide examinations shall include recommendations for improvements to the services provided to children by executive agencies or constituent agencies. The child advocate may utilize any source of information available to the office to make recommendations and may seek advice from individuals with expertise in relevant fields of work or study. The child advocate shall file a report on any examination with the governor, the clerks of the senate and the house of representatives, the senate and house committees on ways and means and the joint committee on children, families and persons with disabilities.

SECTION 31. Section 12 of said chapter 18C, as so appearing, is hereby amended by striking out, in line 12, the word “his”.

SECTION 32. Said section 12 of said chapter 18C, as so appearing, is hereby further amended by striking out, in line 21, the words “chapter 66” and inserting in place thereof the following words:- chapters 66 and 66A.

SECTION 33. Said section 12 of said chapter 18C, as so appearing, is hereby further amended by striking out, in line 23, the word “his” and inserting in place thereof the following word:- the.

SECTION 34. Subsection (e) of said section 12 of said chapter 18C, as so appearing, is hereby amended by striking out the first sentence and inserting in place thereof the following sentence:- The restrictions of this section shall not preclude the child advocate from: (i) sharing the report of, or the results of, a critical incident investigation involving an executive agency or constituent agency with the governor, the attorney general, a district attorney, a secretary or commissioner or other agency personnel involved in the critical incident investigation, the senate president, the speaker of the house of representatives or the chairs of the joint committee on children, families and persons with disabilities; (ii) sharing information with an executive agency or constituent agency when the child advocate deems, in their sole discretion, that such information sharing is necessary for the child advocate to perform the child advocate's duties; or (iii) issuing a public report when such report, in the sole discretion of the child advocate, is necessary for the child advocate to perform their duties.

SECTION 35. Said section 12 of chapter 18C, as so appearing, is hereby amended by adding the following subsection:-

(f) If the child advocate, or the office of the child advocate, elects to withhold a report or components of a report, it shall provide any requesting party with the reasons therefore in writing, which reasons shall also be recorded and available for public inspection; provided, however, that nothing in this subsection shall require any action by office which would compromise any investigation or protective measures that could be, or are being, undertaken by the office of the child advocate or the department of children and families.

SECTION 36. Section 13 of said chapter 18C, as so appearing, is hereby amended by striking out, in lines 5 and 6, the word “his” and inserting in place thereof, in each instance, the following word:- their.

SECTION 37. Said chapter 18C is hereby further amended by adding the following 4 sections:-

Section 15. The office may prepare and update from time to time online resources which the juvenile court may publish on its official website, including: (i) a video clearly defining a child requiring assistance petition, how to file such a petition, the potential outcomes of filing, and a brief overview of community-based resources that may be utilized before filing a petition, including but not limited to family resource centers and the behavioral health helpline; and (ii) a corresponding written overview that contains information about community-based resources.

Section 16. (a) As used in this section, the following words shall have the following meanings, unless the context clearly requires otherwise:

“Child”, a person under the age of 18.

“Fatality”, a death of a child.

“Local team”, a local child fatality review team established in subsection (c).

“Near fatality”, an act that, as certified by a physician, places a child in serious or critical condition.

“State team”, the state child fatality review team established in subsection (b).

“Team”, the state or a local team.

(b)(1) There shall be a state child fatality review team within the office. Notwithstanding section 172 of chapter 6, members of the state team shall be subject to criminal offender record checks to be conducted by the colonel of state police on behalf of the child advocate. All members shall serve without compensation for their duties associated with membership on the state team. The state team shall include, but shall not be limited to: (i) the child advocate or a designee, who shall serve as co-chair; (ii) the commissioner of public health or a designee, who shall serve as co-chair; (iii) the chief medical examiner or a designee; (iv) the attorney general or a designee; (v) the commissioner of children and families or a designee; (vi) the commissioner of elementary and secondary education or a designee; (vii) a representative selected by the Massachusetts District Attorneys Association; (viii) the colonel of state police or a designee; (ix) the commissioner of mental health or a designee; (x) the commissioner of developmental services or a designee; (xi) the director of the Massachusetts Center for Unexpected Infant and Child Death at Boston Medical Center or a designee; (xii) the commissioner of youth services or a designee; (xiii) the commissioner of early education and care or a designee; (xiv) a representative selected by the Massachusetts chapter of the American Academy of Pediatrics who has experience in diagnosing or treating child abuse and neglect; (xv) a representative selected by the Massachusetts Health and Hospital Association, Inc.; (xvi) the president of the Massachusetts Chiefs of Police Association Incorporated or a designee; and (xvii) any other person, selected by the co-chairs or by majority vote of the members of the state team, with expertise or information relevant to an individual case.

(2) The purpose of the state team shall be to decrease the incidence of preventable child fatalities and near fatalities by: (i) developing an understanding of the causes and incidence of child fatalities and near fatalities; and (ii) advising the governor, the general court and the public

by recommending changes in law, policy and practice to prevent child fatalities and near fatalities. The state team may consult with the chief justice of the juvenile court department of the trial court on issues with a direct bearing upon the business of the courts of the commonwealth.

(3) To achieve its purpose, the state team shall: (i) develop model investigative and data collection protocols for local teams; (ii) provide information to local teams and law enforcement agencies for the purpose of protecting children; (iii) provide training and written materials to local teams to assist them in carrying out their duties; (iv) review reports from local teams; (v) study the incidence and causes of child fatalities and near fatalities in the commonwealth; (vi) analyze community, public and private agency involvement with the children and their families prior to and subsequent to fatalities or near fatalities; (vii) develop a protocol for the collection of data regarding fatalities and near fatalities and provide training to local teams on the protocol; (viii) develop and implement rules and procedures necessary for its own operation; and (ix) provide the governor, the general court and the public with annual written reports, subject to confidentiality restrictions, that shall include, but shall not be limited to, the state team's findings and recommendations.

(c)(1) There shall be a local child fatality review team in each district established under section 13 of chapter 12. Notwithstanding section 172 of chapter 6, members of a local team shall be subject to criminal offender record checks to be conducted by the district attorney in each such district. All members shall serve without compensation for their duties associated with membership on a local team. Each local team shall include, but shall not be limited to: (i) the district attorney of the county, who shall serve as chair; (ii) the chief medical examiner or a designee; (iii) the commissioner of children and families or a designee; (iv) a pediatrician with

experience in diagnosing or treating child abuse and neglect, appointed by the state team; (v) a local police officer from a municipality where a child fatality or near fatality occurred, appointed by the chief of police of the municipality; (vi) a state law enforcement officer, appointed by the colonel of state police; (vii) the director of the Massachusetts Center for Unexpected Infant and Child Death located at Boston Medical Center or a designee; (viii) at least 1 representative from the department of public health; (ix) at least 1 representative from the office; and (x) any other person, selected by the co-chairs or by majority vote of the members of the state team, with expertise or information relevant to an individual case; provided, that such person may include, but shall not be limited to, a local or state law enforcement officer, a hospital representative, a medical specialist or subspecialist or a designee of the commissioners of developmental services, mental health, youth services, education and early education and care.

(2) The purpose of each local team shall be to decrease the incidence of preventable child fatalities and near fatalities by: (i) coordinating the collection of information on fatalities and near fatalities; (ii) promoting cooperation and coordination between agencies responding to fatalities and near fatalities and in providing services to family members; (iii) developing an understanding of the causes and incidence of child fatalities and near fatalities in the county; and (iv) advising the state team on changes in law, policy or practice that may affect child fatalities and near fatalities.

(3) To achieve its purpose, each local team shall: (i) review, establish and implement model protocols from the state team; (ii) review, subject to the approval of the local district attorney, all individual fatalities and near fatalities in accordance with the established protocols; (iii) meet periodically, not less than 2 times per calendar year, to review the status of fatality and near fatality cases and recommend methods of improving coordination of services between

member agencies; (iv) collect, maintain and provide confidential data as required by the state team; and (v) provide law enforcement or other agencies with information to protect children.

(4) At the request of the local district attorney, the local team shall immediately be provided with: (i) information and records relevant to the cause of the fatality or near fatality maintained by providers of medical or other care, treatment or services, including dental and mental health care; (ii) information and records relevant to the cause of the fatality or near fatality maintained by any state, county or local government agency, including, but not limited to, birth certificates, medical examiner investigative data, parole and probation information records and law enforcement data post-disposition; provided, however, that certain law enforcement records may be exempted by the local district attorney; (iii) information and records of any provider of social services, including the department, relevant to the child or the child's family, that the local team deems relevant to the review; and (iv) demographic information relevant to the child and the child's immediate family, including, but not limited to, address, age, race, gender and economic status. The district attorney may enforce this paragraph by seeking an order of the superior court.

(d) Any privilege or restriction on disclosure established pursuant to chapter 66A, section 70 of chapter 111, section 11 of chapter 111B, section 18 of chapter 111E, chapter 112, chapter 123, section 20B, 20J or 20K of chapter 233 or any other law relating to confidential communications shall not prohibit the disclosure of this information to the chair of the state team or a local team. Any information considered to be confidential pursuant to the aforementioned statutes may be submitted for a team's review upon the determination of that team's chair that the review of this information is necessary. The chair shall ensure that no information submitted for a team's review is disseminated to parties outside the team. No member of a team shall

734 violate the confidentiality provisions set forth in the aforementioned statutes. Except as
735 necessary to carry out a team's purpose and duties, members of a team and persons attending a
736 team meeting shall not disclose any information relating to the team's business. Team meetings
737 shall be closed to the public. Information and records acquired by the state team or by a local
738 team pursuant to this chapter shall be confidential, exempt from disclosure under chapter 66 and
739 may only be disclosed as necessary to carry out a team's duties and purposes. Statistical
740 compilations of data that do not contain any information that would permit the identification of
741 any person may be disclosed to the public.

742 (e) Members of a team, persons attending a team meeting and persons who present
743 information to a team shall not be questioned in any civil or criminal proceeding regarding
744 information presented in or opinions formed as a result of a team meeting.

745 (f) Information, documents and records of the state team or of a local team shall not be
746 subject to subpoena, discovery or introduction into evidence in any civil or criminal proceeding;
747 provided, however, that information, documents and records otherwise available from any other
748 source shall not be immune from subpoena, discovery or introduction into evidence through
749 these sources solely because they were presented during proceedings of a team or are maintained
750 by a team.

751 (g) Nothing in this section shall limit the powers or duties of the child advocate or district
752 attorneys.

753 Section 17. The office shall, every 3 years, oversee the review of child welfare data
754 reporting and make recommendations for improvements to the report and profile pursuant to
755 subsections (a) and (b) of section 26 of chapter 18B and other reports required pursuant to

subsections (c), (d) and (e) of said section 26 of said chapter 18B. Following the release of the department's annual report, the office shall seek input from the public, advocates and diverse stakeholders from across the commonwealth. The office shall consult with other individuals with relevant expertise, including academics, researchers and service providers. Following such review, the office shall post a report on the office's website on its recommendations, together with drafts of any legislation necessary to carry out its recommendations and an aggregate response to the comments.

Section 18. (a) There shall be within the office of the child advocate a youth engagement program, to ensure that the voices and experiences of youth in congregate care and other out-of-home placements inform statewide policy, oversight, and program improvement.

(b) The youth engagement program shall conduct not less than 4 youth listening sessions annually in congregate care settings, including but not limited to group homes, residential schools, community-based acute treatment programs and other placements serving children in the care or custody of the commonwealth. Sessions shall be facilitated in a trauma-informed, developmentally appropriate manner and shall ensure confidentiality consistent with applicable law.

(c) The office of the child advocate shall annually compile and publish a youth engagement report summarizing any findings and recommendations. The report shall be submitted to the clerks of the senate and house, the senate and house committees on ways and means, the joint committee on children, families and persons with disabilities and the department of children and families and shall be posted publicly in accordance with section 19 of chapter 66.

(d) The office may consult with youth-serving agencies, including the department of children and families, the department of mental health, the department of youth services, the department of elementary and secondary education and the department of early education and care, to facilitate participation and ensure that youth feedback is incorporated into agency oversight and improvement efforts.

SECTION 38. Section 2A of chapter 38 of the General Laws is hereby repealed.

SECTION 39. Said chapter 38 is hereby further amended by adding the following section:-

Section 17. (a) In all cases of sudden unexpected pediatric death, the office shall provide the caregivers of the deceased with information from the office of the child advocate, including a list of publicly available services for sudden unexpected pediatric death and information about how to receive support from the office of the child advocate in accordance with clause (i) of the first paragraph of section 2 of chapter 18C. The office of the chief medical examiner shall provide such list to the caregivers of the deceased not more than 3 days after receipt of the decedent.

(b) The office, in coordination with the department of public health, shall provide, as close to the time of a sudden unexpected pediatric death as practicable, information provided by the office of the child advocate, including a list of publicly available services and information about accessing support from the office of the child advocate pursuant to subsection (d) of section 5 of chapter 18C.

SECTION 40. Chapter 71 of the General Laws is hereby amended by adding the following new section:-

799 Section 34I. (a) Each public elementary and secondary school shall provide the education
800 records of a student in the custody of the department of children and families in a timely and
801 appropriate manner to a case worker or other authorized representative from the department of
802 children and families upon request.

803 (b) Upon receipt of notification from the department of children and families, as required
804 by subsection (k) of section 23 of chapter 119, that it has been determined it is not in the best
805 interest of a student to remain at their school district of origin, the new school district of
806 enrollment shall immediately enroll the student even if the student is unable to produce records
807 normally required for enrollment, including, but not limited to: (i) proof of residency; (ii)
808 academic records; (iii) individualized education programs; (iv) discipline records; (v) documents
809 evidencing proof of custody; (vi) identification documents; and (vii) medical, health, and
810 immunization records; provided, however, that schools may require emergency contact
811 information for a student. Immediate enrollment shall not preclude the new school district from
812 requiring or working to obtain outstanding records normally required for enrollment or from
813 requiring records normally required for ongoing enrollment.

814 (c) The new school district of enrollment shall immediately request, from the school
815 district of origin, the regularly required enrollment forms and a transfer of any additional
816 education records of the student, including but not limited to: (i) immunization records and other
817 health records possessed by the school; (ii) academic transcripts; (iii) class enrollment history,
818 including any advanced or remedial courses; (iv) attendance records; (v) individualized
819 education program or section 504 plan, as applicable; and (vi) disciplinary records and other
820 records contained in the student's temporary education record maintained centrally by the
821 school, to the new school district of enrollment. The school district of origin shall transfer such

822 student records immediately and without the prior consent of a parent or guardian, consistent
823 with the Family Educational Rights and Privacy Act, 20 U.S.C. § 1232g.

824 (d) The board of elementary and secondary education shall promulgate regulations to
825 implement the provisions of this section, including specific timelines for the transfer of education
826 records for students in the custody of the department of children and families. When
827 promulgating regulations under this section, the board shall consider the use of electronic
828 repositories to facilitate the transfer of students' educational records.

829 SECTION 41. Section 57 of said chapter 71, as appearing in the 2024 Official Edition, is
830 hereby amended by inserting after the word "personnel", in line 52, the following words:- and
831 the children's vision registry established in section 250 of chapter 111.

832 SECTION 42. Chapter 111 of the General Laws is hereby amended by inserting after
833 section 249 the following section:-

834 Section 250. (a) The department shall establish, maintain and operate a computerized
835 registry of children's vision screening and eye care to support the early identification of vision
836 and eye health conditions in children, promote referrals and follow-up care and monitor access to
837 and equity in children's vision care in the commonwealth. The registry shall collect and maintain
838 information concerning children's vision and eye health screenings, referrals, eye examinations
839 and follow-up eye care, including information reported pursuant to section 57.

840 (b) The department, in consultation with the board of elementary and secondary
841 education, shall promulgate rules and regulations to implement this section. The regulations shall
842 establish: (i) the persons and entities required or permitted to report information to the registry;
843 (ii) the data to be reported; (iii) the form, manner and frequency of reporting; (iv) standards for

security, confidentiality, user authentication and access control; (v) procedures by which an individual or, if the individual is a minor, the individual's parent or guardian, may object to the disclosure of personally identifiable information; (vi) procedures to correct inaccurate information; and (vii) any other requirements necessary to implement this section.

(c) Licensed healthcare providers who administer children's vision or eye health screenings, conduct children's eye examinations or provide follow-up eye care to children and any other person or entity designated by the department by regulation shall report to the registry such information as the department determines is necessary for the purposes of this section in accordance with the department's regulations.

(d) The department shall develop appropriate safeguards to protect the security of the registry and the privacy of information contained within the registry. Personally identifiable information in the registry shall not be disclosed except as provided in this section or in regulations promulgated pursuant to this section. Unless the individual or, if the individual is a minor, the individual's parent or guardian, objects in the form and manner prescribed by the department, personally identifiable information may be released to: (i) licensed healthcare providers providing direct care to the child; (ii) school nurses and other school personnel responsible for screening, referral or follow-up for the child; (iii) employees or contractors of the department or staff of state agencies or state programs whose duties include case management, outreach, quality improvement or program evaluation related to children's vision care; and (iv) the individual or, if the individual is a minor, the individual's parent or guardian.

(e) Persons authorized by the commissioner may conduct research studies using information in the registry; provided, however, that the researcher submits a written request for

866 information and executes a data use or research agreement that protects the confidentiality of the
867 information provided.

868 (f) Information contained in the children's vision registry shall be confidential, shall not
869 constitute a public record and shall not otherwise be disclosed, except in accordance with this
870 section.

871 SECTION 43. Section 21 of chapter 119 of the General Laws, as appearing in the 2024
872 Official Edition, is hereby amended by striking out the definition of "Child requiring assistance"
873 and inserting in place thereof the following definition:-

874 "Child requiring assistance", a child between the ages of 12 and 18 who is not currently in
875 the custody of the department of children and families or the department of youth services who:
876 (i) repeatedly runs away from the home of the child's parent, legal guardian or custodian; (ii)
877 repeatedly fails to obey the lawful and reasonable commands of the child's parent, legal guardian
878 or custodian, thereby interfering with their ability to adequately care for and protect the child;
879 (iii) repeatedly fails to obey the lawful and reasonable regulations of the child's school; (iv) is
880 habitually absent without permission; or (v) is a sexually exploited child.

881 SECTION 44. Said section 21 of said chapter 119, as so appearing, is hereby further
882 amended by striking out the definition of "habitually truant" and inserting in place thereof the
883 following definition:-

884 "Habitually absent without permission", a child, not excused from attendance under the
885 lawful and reasonable regulations of such child's school, who willfully fails to attend school for
886 more than 8 school days in a quarter.

887 SECTION 45. Subsection (f) of section 23 of chapter 119 of the General Laws, as so
888 appearing, is hereby amended by striking out the last sentence.

889 SECTION 46. Subsection (h) of said section 23 of said chapter 119, as so appearing, is
890 hereby amended by striking out the second paragraph.

891 SECTION 47. Said section 23 of said chapter 119, as so appearing, is hereby further
892 amended by adding the following subsection:-

893 (k) When a school-aged child who is in the custody of the department is placed in or
894 transferred to an out-of-home placement, the department shall timely notify the school-aged
895 child's current school district of enrollment of such placement or transfer; provided further, that
896 if it is determined it is not in the school-aged child's best interest to remain at their school district
897 of origin, the department shall timely notify the new school district of enrollment of the school-
898 aged child's transfer in enrollment.

899 SECTION 48. Said chapter 119 is hereby amended by inserting after section 23D the
900 following section:-

901 Section 23E. (a) Each child in the custody or care of the department has the following
902 rights:

903 (1) Safety and Security:

904 (i) Each child shall be treated with dignity, respect and consideration, and shall have the
905 right to have their privacy respected.

906 (ii) Each child has the right not to be harmed by department staff, foster parents or
907 service providers.

908 (iii) Each child has the right not to be discriminated against or harassed by department
909 staff, foster parents, the child's attorney or service providers on the basis of religion, race, color,
910 creed, gender, gender identity, gender expression, sexual orientation, national origin, age,
911 disability, culture, language or ethnicity.

912 (iv) Each child has the right to a placement that is free from physical, psychological,
913 sexual, emotional or other abuse, neglect or exploitation.

914 (v) Each child has the right to access personal possessions, personal space and privacy
915 with allowance for safety.

916 (vi) Each child has the right to control the taking, use and disclosure of all pictures of
917 themselves; provided, however, that the exercise of the right may be subject to limitations
918 necessary to protect the wellbeing, health or safety of the child.

919 (vii) Each child has the right to access sufficient healthy food, clothing, personal care
920 products, appropriate self-care needs for their hair and body, as well as items that preserve and
921 promote the child's religion, culture and gender identity.

922 (viii) Each child has the right to be placed in a safe and nurturing environment and
923 receive appropriate care and treatment in the least restrictive setting available that can meet the
924 child's needs and address their trauma history.

925 (ix) Each child has the right not to be placed, housed or detained in a secure department
926 of youth services placement based on the department's inability to provide an available and
927 appropriate foster placement. The department shall not advocate for bail of any amount for
928 children in its care or custody.

(x) Each child has the right to developmentally appropriate information about a foster family or program prior to being placed whenever possible and, whenever possible and appropriate, shall have an opportunity to meet the foster parent or program staff before placement occurs. If the foster placement is only able to accommodate the child for a limited time, the child shall be notified of the anticipated duration of the child's stay with that foster placement. The child shall be informed of a placement change and any reason for the change at least 5 days in advance whenever possible. When a change is made in an emergency circumstance, the child shall be given as much notice as possible. The child's belongings shall be packed with care and the child shall be allowed to bring their essential belongings and comfort items with them.

(2) Connections to Family, Community and Identity:

(i) Each child has the right to know, understand, learn about and develop the child's racial, cultural, linguistic, gender, religious and ethnic identity, including but not limited to clothing, hair, other cultural expressions of identity and body care and to a placement that will provide or maintain the connections necessary to preserve and promote the child's identities.

(ii) To the best of the department's ability, each child has the right to preserve and maintain all languages the child entered care speaking and to reside in a placement that provides or facilitates appropriate language access.

(iii) Each child has the right to a placement that supports and affirms their identity, including on the basis of religion, race, color, creed, gender, gender identity, gender expression, sexual orientation, national origin, age, disability, culture, language or ethnicity.

(iv) Each child has the right to choose whether or not and to whom to disclose information about their sexual orientation and gender identity, and the right to have that information not further disclosed without their consent, unless required to protect the child's health and safety, or where compelled by law or court order.

(v) Each child has the right to timely permanency which includes stabilization of family, reunification, adoption, guardianship, care with kin or another planned permanent living arrangement.

(vi) Each child has the right to a placement identified and located through due diligence that prioritizes the child's relatives and kinship, using full and fair consideration, as potential placement providers, when the child cannot remain safely at home with their parent or parents.

(vii) Each child has the right to frequent and meaningful contact with the child's siblings or half-siblings, facilitated by the department pursuant to section 26B of chapter 119. The department shall prioritize placement with the child's siblings or half-siblings in all settings and permanency plans, including but not limited to foster care, congregate care, and adoption, unless the joint placement is contrary to the safety, well-being, or permanency of any of the siblings.

(viii) Each child has the right to family time of a duration and frequency and in a setting that (A) is consistent with the developmental or clinical needs of the child and (B) promotes and preserves their connections with their family. Family time shall take place in person and outside of a department office whenever possible.

(ix) Each child has the right to other forms of parental contact, including but not limited to mail, phone calls, videoconferences, email and texts if they have their own phone and if not

971 harmful to the safety or well-being of the child. All placements shall facilitate access to virtual
972 forms of contact if safe and appropriate.

973 (x) Each child has the right to assistance to maintain positive contact with other family
974 members and significant other positive relationships in the child's life, including but not limited
975 to extended family, family friends, teachers, friends and community individuals.

976 (xi) Each child has the right to be treated as a family member in a foster family and,
977 whenever possible, be included in a foster family's activities, holidays and traditions while
978 taking into consideration factors that include but are not limited to the child's age and trauma
979 history. Each child shall have the opportunity to be included in the daily activities of the family
980 and to maintain the most normal daily routine and environment as possible. If choosing not to
981 take part, each child or young adult shall have the opportunity to discuss their reasons with the
982 social worker and foster family.

983 (3) Health Care and Accessibility:

984 (i) Each child has the right to access appropriate, timely and gender-affirming medical,
985 reproductive, dental, vision, mental and behavioral health services regularly and more often as
986 needed.

987 (ii) Each child has the right to discuss any questions or concerns the child has relating to
988 medication or other physical, mental or behavioral health treatment with a healthcare provider
989 and to understand the medications or treatment provided, its purposes and side effects in a
990 developmentally appropriate way.

(iii) Each child has the right to out-of-home placements with reasonable accommodations for any disabilities the child may have, consistent with state and federal law. Reasonable accommodations shall be provided in a timely manner and in such a way as to protect the privacy of the child. Each child also has a right to discuss any disabilities with the department and request adaptive equipment, auxiliary aids or services.

(4) Education, Employment and Social Connections:

(i) Each child has the right to attend school regularly, to educational stability, to educational supports and to an education that meets their needs under federal and state law.

(ii) Each child has the right for the department to prioritize school stability by maintaining the child at their school of origin unless it is found, in a Best Interest Determination meeting pursuant to federal law, not to be in their best interest to do so.

(iii) Each child has the right to participate in developmentally appropriate school, extracurricular, enrichment, religious, cultural, linguistic, ethnic and social activities and to have any placement provider use the reasonable and prudent parenting standard when making decisions regarding participation in such activities.

(iv) Each child has the right to achieve developmentally and religiously appropriate, age-related milestones, including but not limited to obtaining a driver's license, opening bank accounts, birthday celebrations, religious ceremonies or graduations.

(v) Each child has the right to be informed of and supported in accessing all available services through the department, including but not limited to educational, vocational and employment services, assistance in acquiring life skills, educational assistance including but not

1012 limited to tuition and fee waivers for post-secondary education, financial support, housing
1013 support, assistance with credit reports and resolving inaccuracies, training and career guidance to
1014 accomplish personal goals and prepare for the future, employment supports available to children
1015 in care and adaptive equipment or auxiliary aids and supports.

1016 (vi) Each child has the right to developmentally appropriate education on financial
1017 preparedness, job readiness, appropriate use of social media, education options, healthy
1018 relationships, physical, mental, sexual and reproductive health.

1019 (5) Resources and Supports:

1020 (i) Each child has the right to reasonable access to a social worker who can make action
1021 plan decisions. Each child shall have opportunities for the child to have private conversations
1022 with a social worker regarding any questions, grievances or concerns. Reasonable access shall
1023 include providing the child with the department's social worker and supervisor's office telephone
1024 numbers and email addresses as well as, at a minimum, monthly visits by the department. The
1025 department shall also provide the child an emergency contact number for the department during
1026 non-business hours for emergency and safety issues.

1027 (ii) Each child has the right to participate as developmentally appropriate in the
1028 development and review of the action plans and family time and visitation plans, their
1029 individualized education program and best interest determination and shall be consulted as the
1030 department formulates or updates said items. Children aged 14 and older shall also be presented
1031 with the action or service plan for their review, written feedback and signature.

1032 (iii) Each child has the right to be informed, in a developmentally appropriate way, of the
1033 meaning of all documents that they are asked to sign by the department or its agents, contractors

1034 or providers including the voluntary agreement for placement and documents of similar
1035 importance. A child shall have their attorney present whenever asked to sign any documents by
1036 the department or its agents, contractors or providers, or the document shall be provided in a
1037 timely fashion to the child's attorney to give an opportunity for review in advance of presenting
1038 it for signature.

1039 (iv) Each child has the right to be informed in a developmentally appropriate way of the
1040 reasons the department became involved with the child's family, why the child came into care
1041 and why the child is still in care. The department shall offer support through the review process
1042 to address any possible trauma caused by a child's access to their case files. Upon turning 18, the
1043 young adult shall have the right to access their individual information from their case files,
1044 barring any state or federal law that would prohibit the department from allowing the release of
1045 information.

1046 (v) Each child aged 14 or older has the right to be included in foster care review
1047 meetings, permanency hearings and lead agency team meetings except for those parts that
1048 involve information that is confidential regarding their parents or a previous or future adoptive,
1049 kinship or foster parent under federal or state law, and unless documented by court order that
1050 participation would be detrimental to the child. The department shall provide the child the ability
1051 to offer confidential input to the department before a final decision is made with respect to
1052 determining or changing placement or permanency. If the child is unable to attend in person, by
1053 phone or video, the child shall have the right to submit a written statement to be considered at the
1054 meeting or hearing.

1055 (vi) Each child and young adult has the right to adequate notice of all court hearings by
1056 their attorney. To the extent possible, the notice shall include the date, time and location of the
1057 hearing. If developmentally appropriate, the child’s social worker and the child’s attorney shall
1058 inform them of actions or decisions made by the court. In a developmentally appropriate manner,
1059 the child’s attorney shall ensure the child understands the child’s right to attend their annual
1060 permanency hearings and speak to the judge regarding any decision that may have an impact on
1061 the child’s life.

1062 (vii) Each child and young adult has the right to access their medical, dental and
1063 educational records held by the department as well as their personal documents, including but
1064 not limited to social security card, birth certificate, health insurance information, state
1065 identification card, driver’s license, passport and documentation related to their immigration
1066 status, including work authorization, in a developmentally appropriate way. When a child or
1067 young adult leaves the care of the department, they shall be given copies of medical, dental and
1068 educational records held by the department and original copies of all personal documents. The
1069 department shall further provide contact information for providers who are currently providing
1070 care for the young adult. The department shall begin planning to return the documents to the
1071 child at least 30 days before the young adult leaves care.

1072 (viii) Each child and young adult has the right to change their name and the right to
1073 change their gender marker on official documents with assistance from the child or young adult’s
1074 attorney and the department, and to have all relevant legal documents updated accordingly.

1075 (ix) Each eligible child and young adult has the right to obtain a state identification card
1076 with the department’s assistance.

(x) Each child and young adult has the right to an attorney pursuant to section 29 of chapter 119 and to meaningful contact with said attorney, including at foster care reviews. Each child shall be informed, when appropriate, of the name and phone numbers of the assigned attorney. Each child, child's parent, and foster parent shall be informed, when appropriate, that the child can contact the child's attorney, and of the processes to file a complaint regarding the child's attorney and to request a change of attorney for the child.

(xi) Each child, and their attorney, has the right to be informed if the department applies for any benefits on behalf of the child, including but not limited to benefits under Title XVI of the Social Security Act, also referred to as supplemental security income; benefits under Title II of the Social Security Act, also referred to as retirement, survivors or disability benefits, and if the department applies to be the representative payee for such benefits. The department shall preserve all of such funds received in an interest-bearing account belonging to the child so the funds are available for the child's benefit and use while they are in care, and the child's use when they turn 18. The department shall not use such funds for the customary costs of foster care, nor shall it use such funds to pay the costs of items which would ordinarily be funded by another source. If necessary, the department shall preserve said funds in an achieving a better life experience account authorized by 26 U.S.C. § 529A, or another trust account for the child determined not to interfere with supplemental security income or asset limitations for any other benefit program.

(6) Transition Age Youth:

(i) Each child and young adult, age 14 or older, has the right to collaborate with the department to plan their transition from foster care to adulthood. Transition planning should

1099 cover all areas needed for a youth to be stable and successful as an adult, including but not
1100 limited to, planning for visits or contact with parents and siblings; building relationships with
1101 other caring adults, particularly with life-long connections; making an education plan including
1102 post-secondary education; finding vocational, employment and career counseling and placement;
1103 securing stable housing; developing expertise in daily living skills; maintaining physical,
1104 reproductive and mental health care and health insurance; learning how to access community
1105 resources and public benefits and services; connecting with other state agencies; developing
1106 financial skills including, but not limited to, understanding budgeting and money management as
1107 well as checking and savings accounts; and receiving, understanding and correcting, if
1108 applicable, the child's consumer credit report.

1109 (ii) Each young adult who turns 18 while in the custody of the department, has the right
1110 to continue under the responsibility of the department and receive young adult services until
1111 turning 22 years of age, pursuant to federal and state requirements, unless completing an
1112 educational program until age 23. Each young adult has the right to be offered a voluntary
1113 placement agreement by the department in the month prior to their turning 18 years old. The
1114 voluntary placement agreement shall be developed together with the child or young adult during
1115 permanency and transition planning. Each child or young adult has the right to be made aware of
1116 this right and any federal requirements governing services for transition age youth throughout the
1117 transition planning process.

1118 (iii) Each child has the right to a timely transition plan prior to turning 18 years old,
1119 crafted by the department at the direction of the transition age youth, regardless of whether they
1120 will continue under the responsibility of the department upon turning 18, that includes
1121 personalized, detailed, tangible, available and clear options for resources for meeting their basic

1122 needs including, but not limited to, housing, education and vocational supports which fulfill the
1123 requirements of 42 U.S.C. § 675(5)(H), as amended.

1124 (iv) Each young adult who has chosen to remain under the responsibility of the
1125 department has the right to engage and re-engage with the department under a voluntary
1126 placement agreement at any time for any reason.

1127 (v) Each young adult who has chosen to remain under the responsibility of the
1128 department, who is leaving care at age 18 or who is re-entering care has the right to be housed
1129 and provided information about and assistance with securing all department-identified,
1130 appropriate housing opportunities.

1131 (7) Remedies.

1132 (i) Each child has the right to have these rights enforced. The department shall not
1133 retaliate against or punish a child for asserting their rights. Nothing in this section shall be
1134 construed to diminish the rights, privileges or remedies of any person under any other federal or
1135 state law.

1136 (ii) Each child has the right to department-provided contact information for the
1137 ombudsperson and the office of the child advocate when they enter the care and custody of the
1138 department and upon request. If it is developmentally inappropriate to provide the child with
1139 such information, a child's attorney shall be provided with this contact information.

1140 (iii) Each child has the right, if the child and the child's attorney, believes any of the
1141 above rights have been violated, to discuss the alleged violation with the department's
1142 ombudsman, file a grievance with the department or file a complaint with the office of the child

1143 advocate. The department shall not retaliate against or punish a child, a child's parent, an
1144 attorney, a social worker, a foster parent or placement provider for asserting this right. If the
1145 department or the office of the child advocate determines the child's rights have been violated,
1146 the department shall resolve the violation as soon as practicable and make corrections so that the
1147 violation does not reoccur.

1148 (b) The rights enumerated in subsection (a) shall be obligations of the department. The
1149 department shall amend any regulations or policies that may conflict with this section in a timely
1150 fashion.

1151 (c) The rights enumerated in subsection (a) are not an exhaustive list of rights to which
1152 children under the custody, care or responsibility of the department are entitled and should not be
1153 read to limit the rights of children, or the responsibilities of the department, in any way.

1154 (d) The department shall create, in consultation with community members and young
1155 people with lived experience in the child welfare system, a simple and plain language version of
1156 these rights as enumerated in subsection (a) so that they are accessible and easily understood by
1157 children and young adults in the department's care. The department shall present the document
1158 to each child in its care, or when developmentally appropriate to the child's attorney, the parents
1159 of each child in its care and the foster parent or placement provider of each child in its care. The
1160 department and the child's attorney shall explain these rights to the child in a developmentally
1161 appropriate way when the child enters the department's care. The department shall ensure the
1162 document is translated into the preferred language of the child or young adult in care, the child's
1163 parents and the foster parents. The document shall be posted in all congregate care facilities in a

1164 public space where all residents have access, prominently on the department's website and in all
1165 area offices.

1166 SECTION 49. Said chapter 119 is hereby further amended by inserting after section 29D
1167 the following section:-

1168 Section 29E. (a) Not later than 5 business days after a non-emergency change in the
1169 placement of a child or a young adult or after any non-emergency hospitalization, the department
1170 shall provide notice of the change in placement or hospitalization to counsel for the child or
1171 young adult appointed pursuant to section 29.

1172 (b) Not later than 5 business days after an emergency change in a child's or a young
1173 adult's placement or after an emergency hospitalization, the department shall provide notice of
1174 the change in placement or hospitalization to counsel for the child or the young adult appointed
1175 pursuant to section 29.

1176 (c) Not later than 3 business days after receipt of a report under section 51A, the
1177 department shall provide notice to a child's counsel if it receives a report under said section 51A
1178 and the child is the subject of the report.

1179 (d) The department shall provide notice to a child's or young adult's counsel within 3
1180 business days whenever the department becomes aware of: (i) the child or young adult being
1181 arrested; (ii) the child's or young adult's involvement in any proceeding under this chapter or
1182 any criminal investigation or proceeding; (iii) the child or young adult being suspended or
1183 expelled from school; or (iv) the child or young adult being the subject of any proceeding
1184 regarding their suspension or expulsion from school.

(e) The department's attorney portal shall provide timely automated notifications for all events described in this section to counsel appointed pursuant to section 29.

SECTION 50. Said chapter 119 is hereby further amended by striking out section 39E, as appearing in the 2024 Official Edition, and inserting in place thereof the following section:-

Section 39E. (a) Any division of the juvenile court department may receive and hear requests for assistance stating that there is a child requiring assistance or a family requiring assistance as defined in section 21, pursuant to this section or sections 39F to 39I, inclusive. Proceedings pursuant to this section and said sections 39F to 39I, inclusive, shall not be deemed criminal proceedings and any record of such proceedings, including the filing of an application for assistance and creation of a docket, shall not be entered in the criminal offender record information system. Notwithstanding any general or special law to the contrary, no record pertaining to the child involved in the proceedings shall be maintained or remain active after the application for assistance has been dismissed; provided, however, that nothing herein shall be construed to prohibit the maintenance or reporting of information after records pertaining to the matter have been expunged, provided that the information is kept in a manner that does not enable identification of the child or petitioner and is used solely for statistical or bona fide research purposes. The identity and record of any child for whom an application for assistance is filed shall not be submitted to the department of criminal justice information services, criminal offender record information system, court activity record index or any other criminal record information system. Proceedings under this section and sections 39F to 39I, inclusive, shall be confidential and not open to the public. Subject matter jurisdiction of the Boston juvenile court under this section shall extend to the territorial limits of Suffolk county.

(b) A parent, legal guardian, or custodian of a child having custody of such child, may initiate an application for assistance in any of the juvenile courts stating that said child repeatedly runs away from the home of said parent or guardian or repeatedly refuses to obey the lawful and reasonable commands of said parent, guardian or custodian resulting in said parent, guardian or custodian's inability to adequately care for and protect said child. The application shall state whether the child or the child's family has visited or received services from a family resource center within 180 days of submitting the application. Before scheduling a hearing on an application for assistance, the clerk shall provide to the petitioner: (i) informational materials prepared by the court that: (A) explain the court process; (B) include the types of orders that the court may issue and the possibility of changes in the custody of the child; (C) include an explanation of the services that may be available through the court process, including language translation services and reasonable accommodations, and the manner in which those services may be delivered; and (ii) informational materials developed by the child advocate under section 15 of chapter 18C. If the child or the child's family indicates on the application that they have not visited or received services from a family resource center within the last 180 days, the clerk shall refer the child and the child's family to a family resource center before scheduling a hearing on the application. If the petitioner has visited or received services from a family resource center within the last 180 days and decides to proceed after receiving the required informational materials, the clerk shall set a hearing date forthwith, but not later than 15 days after the request is presented to the clerk for filing, to determine whether assistance is needed, and shall notify the child of such hearing.

(c) A school district may initiate an application for assistance stating that a child is not excused from attendance in accordance with the lawful and reasonable regulations of such child's

1230 school, has willfully failed to attend school for more than 8 school days in a quarter or repeatedly
1231 fails to obey the lawful and reasonable regulations of the child's school. The application for
1232 assistance shall set forth: (i) whether and when the child and the child's caregivers have been
1233 referred to a family resource center; (ii) the specific steps taken by the school district to support
1234 the child's attendance, if applicable; (iii) the specific court intervention that the school district is
1235 seeking to support the child in returning to school or improving the child's conduct; and (iv) if
1236 the application for assistance states that a child has repeatedly failed to obey the lawful and
1237 reasonable regulations of the school and a statement of the specific steps taken by the school to
1238 attempt to improve the child's conduct. An application that indicates that the school district has
1239 not made the caregiver referral to a family resource center required under subsection (f) of
1240 section 16U of chapter 6A shall not be scheduled for a hearing The school district shall not
1241 initiate an application for assistance to address matters that fall within the school's legal
1242 responsibility under federal and state law including, but not limited to, the creation or
1243 amendment of an individualized education program, decisions regarding the educational
1244 placement of a student pursuant to an individualized education program or the creation or
1245 amendment of a section 504 plan to provide the student with accommodations that allow the
1246 student to have equal access to education.

1247 Before an application for assistance initiated by a school district is scheduled for a
1248 hearing, a probation officer shall consult with the family resource center to which the child and
1249 the child's family was referred. Staff at a family resource center shall be authorized to report to a
1250 probation officer if the child has met with a case manager pursuant to subsection (c) of section
1251 16U of chapter 6A. The family resource center shall, in writing, indicate to the probation officer
1252 whether, in its opinion, it believes the child and the child's family have exhausted all relevant

community-based service options that are reasonably available to them. The family resource center shall report in writing if the child's family has failed to contact the family resource center following referral or if the family has declined to engage with offered services. Any other information about the child or family shall be kept confidential as required by section 16U of chapter 6A. If the family resource center indicates to the probation officer that community-based options reasonably available to the family have not been exhausted, that the family has engaged with the family resource center and with offered services and the supports requested in the filing can be obtained from the family resource center or through a community-based service provider or state agency to which the family resource center is able to connect the child and the child's family, the application for assistance shall be dismissed. The probation officer may refer the child to an appropriate public or private organization or person for psychiatric, psychological, educational, occupational, medical, dental, social or substance use treatment services.

If the family resource center indicates that the family has not engaged with the family resource center or with offered services or that all community-based service options relevant to the child's needs and reasonably accessible to the petitioner have been exhausted, and the petitioner decides to proceed, the clerk shall set a date for a hearing forthwith, but not later than 15 days after the request is presented to the clerk for filing, to determine whether assistance is needed, and shall notify the child of such hearing.

(d) With respect to applications for assistance initiated pursuant to subsections (b) or (c) and for which the clerk has scheduled a hearing, the court shall hold a hearing in which it shall receive the recommendation of the probation officer and shall either: (i) decline to accept the application for assistance because there is no probable cause to believe that the child and the child's family are in need of assistance; (ii) decline to accept the application for assistance

1276 because it finds that the interests of the child would best be served by informal assistance, in
1277 which case the court shall, with the consent of the child and the child's parents or guardian, refer
1278 the child to a probation officer for assistance; or (iii) accept the application for assistance and
1279 schedule a fact-finding hearing. If the child is brought in on custodial protection, the court shall
1280 accept an application for assistance unless one has already been filed, and the court shall
1281 immediately request the probation officer promptly to make like inquiry and thereafter report to
1282 the court the probation officer's recommendation as to whether the interests of the child can best
1283 be served through referral to community-based services or informal assistance without a fact-
1284 finding hearing. Upon receiving such recommendation, the court may hold a hearing and shall
1285 decide whether to proceed with a fact-finding hearing or to refer the child to the care of a
1286 probation officer for assistance.

1287 When an application for assistance is dismissed under this section, the court shall enter an
1288 order directing expungement of any records of the request and related proceedings maintained by
1289 the clerk, the court, the department of criminal justice information services, the court activity
1290 record index and the probation department that directly pertain to the application for assistance.
1291 Nothing herein shall be construed to prohibit the maintenance or reporting of information
1292 relating to any petition filed under this section and sections 39F to 39I, inclusive, after records
1293 pertaining to the matter have been expunged, provided that the information is kept in a manner
1294 that does not enable identification of the child or petitioner and is used solely for statistical or
1295 bona fide research purposes.

1296 Whenever a child is referred to a probation officer for assistance, such officer may
1297 conduct conferences with the child and the child's family to effect adjustments or agreements
1298 which are calculated to resolve the situation which formed the basis of the application for

1299 assistance and which will eliminate the need for a fact-finding hearing. During the pendency of
1300 such referrals or conferences, neither the child nor the child's parents shall be compelled to
1301 appear at any conferences, produce any papers or visit any place; provided, however, that if the
1302 child or the child's parents fail to participate in good faith in the referrals or conferences
1303 arranged by the probation officer, the probation officer shall so certify in writing, and the clerk
1304 shall accept the application for assistance if one has not already been accepted and shall set a
1305 date for a fact-finding hearing. The judge who conducted the hearing on the acceptance of the
1306 application for assistance shall not preside at any subsequent hearing. Conferences and referrals
1307 arranged under this section may extend for a period not to exceed 90 days from the date that the
1308 application for assistance was initially filed, unless the parent and child voluntarily agree in
1309 writing to a continuation of such conferences or referrals for an additional period not to exceed
1310 90 days from the expiration of the initial period. Upon the expiration of the initial 90-day period,
1311 or of such additional 90-day period, the application for assistance, if any, shall be dismissed and
1312 the child and the child's parents discharged from any further obligation to participate in such
1313 conferences and referrals, or an application for assistance shall, if not already accepted, be
1314 accepted and a date set for a fact-finding hearing. No statements made by a child or by any other
1315 person during the period of inquiries, conferences or referrals may be used against the child at
1316 any subsequent hearing to determine that the child requires assistance, but such statements may
1317 be received by the court after the fact-finding hearing for the purpose of disposition.

1318 The commissioner of probation shall establish a system to collect data on all requests for
1319 assistance made and how they are resolved under this section and sections 39F to 39I, inclusive.
1320 Such system shall maintain the privacy of clients served, assist the court in identifying and
1321 addressing the needs of the population to be served and collect information related to: (i)

demographics of the child, including but not limited to the racial and ethnic identity of the child, age, primary language, disability status and gender; (ii) the insurance status and coverage of clients served; (iii) whether the child had received support from a family resource center pursuant to section 16U of chapter 6A or another community-based organization prior to filing, the supports requested as detailed in the application, the needs identified by the probation officer, the length of time a child has been receiving assistance from a probation officer, including the time prior to and subsequent to the filing of an application for assistance; (iv) whether a school-initiated filing involves a need for services or placement decisions that fall within the legal responsibility of the school district under federal or state law; (v) the identity of any public or private organization to whom a probation officer has referred a child or family for services; and (vi) any other information that may assist the commissioner and the court in evaluating the availability and effectiveness of services for children who are the subjects of requests for assistance under this section. The probation officer shall gather information concerning each child and family referred to the officer including, but not limited to, (A) insurance status and coverage; (B) the child's school district; (C) whether the child or family received support from a family resource center pursuant to said section 16U of said chapter 6A; (D) the supports requested as detailed in the child requiring assistance application; (E) the needs identified by the probation officer; and (F) other information that may assist the commissioner of probation and the court in evaluating the availability and effectiveness of services for children who are the subjects of requests for assistance under this section.

Upon the filing of an application for assistance under this section, the court may issue a summons, to which a copy of the application for assistance shall be attached, requiring the child named in such application to appear before the court at the time set forth in the summons. If such

1345 child fails to obey the summons, the court may issue a warrant reciting the substance of the
1346 petition and requiring the officer to whom it is directed forthwith to take and bring such child
1347 before the court. Notice of the hearing shall be given to the department of children and families.

1348 If the court summons a child to appear, the court shall in addition issue a summons to
1349 both parents of the child, if both parents are known to reside in the commonwealth, or to 1 parent
1350 if only 1 is known to reside within the commonwealth, or, if there is no parent residing in the
1351 commonwealth, then to the parent having custody or to the lawful guardian of such child. The
1352 summons shall require the person served to appear at a time and place stated therein at a hearing
1353 to determine whether or not the child is in need of assistance.

1354 Unless service of the summons required by this section is waived in writing, such
1355 summons shall be served by the constable or police officer, either by delivering it personally to
1356 the person to whom addressed, or by leaving it with a person of proper age to receive the same,
1357 at the place of residence or business of such person, and said constable or police officer shall
1358 immediately make return to the court of the time and manner of service.

1359 SECTION 51. Said chapter 119 is hereby further amended by striking out section 39G, as
1360 so appearing, and inserting in place thereof the following section:-

1361 Section 39G. At a hearing to determine whether a child and family require assistance, the
1362 child and the child's attorney shall be present and the parents, legal guardian or custodian shall
1363 be given an opportunity to be heard. The petitioner and any party may file a motion to dismiss
1364 the request for assistance at any time prior to a hearing to determine the disposition of a request
1365 for assistance. Upon a filing of a motion to dismiss, the judge shall order that the request for
1366 assistance be dismissed upon a showing that the dismissal is in the best interests of the child or if

1367 all parties agree to the dismissal. A probation officer may at any time recommend to the court
1368 that the request for assistance be dismissed upon a showing that dismissal is in the best interests
1369 of the child.

1370 Upon a finding that a child requires assistance after a fact-finding hearing, the court shall
1371 convene and may participate in a conference of the probation officer who conducted the
1372 preliminary inquiry, a representative from a family resource center or other community-based
1373 services program, if involved with the family, the petitioner, a representative from the child's
1374 school, the child's parent, legal guardian or custodian, the child and the child's attorney, a
1375 representative of the department of children and families, if involved with the family, and any
1376 other person who may be helpful in determining the most effective assistance available to be
1377 offered to the child and family, including representatives from MassHealth, the juvenile court
1378 clinic and other state entities depending on the supports requested. The probation officer shall
1379 present written recommendations and other persons at the conference may present written
1380 recommendations to the court to advise the court on appropriate treatment and services for the
1381 child and family, appropriate placement of the child, and appropriate conditions and limitations
1382 on any such placement.

1383 At the conference and subsequent hearing on disposition, the child and the child's
1384 attorney shall be present and the parents, legal guardian or custodian, and the child and petitioner
1385 shall be given an opportunity to be heard. The court may receive evidence as to the best
1386 disposition of the petition from all persons who participate in the conference and any other
1387 person who may be helpful in determining an appropriate disposition. The department of
1388 children and families shall be provided with advance notice of the hearing and an opportunity to

1389 participate prior to the court recommending placement of the child in the department's custody
1390 pursuant to clause (iii) of the following paragraph.

1391 If the court finds the statements in the application for assistance have been proved at the
1392 hearing, it may determine the child to be in need of assistance. Upon making such determination,
1393 the court, taking into consideration the physical and emotional welfare of the child, may make
1394 any of the following orders of disposition:

1395 (i) subject to any conditions and limitations the court may prescribe, including provision
1396 for medical, psychological, psychiatric, educational, occupational and social services, and for
1397 supervision by a court clinic or by any public or private organization providing counseling or
1398 guidance services, permit the child to remain with their parents, legal guardian or custodian;

1399 (ii) subject to such conditions and limitations as the court may prescribe, including, but
1400 not limited to provisions for those services described in clause (i), place the child in the care of a
1401 relative or other adult individual who, after inquiry by the probation officer or other person or
1402 agency designated by the court, is found to be qualified to receive and care for the child;

1403 (iii) subject to the provisions of sections 32 and 33 and with such conditions and
1404 limitations as the court may recommend, place the child in the custody of the department of
1405 children and families; provided, however, that at the same time, the court shall consider the
1406 provisions of section 29C and shall make the written certification and determinations required by
1407 said section 29C; provided further, that the department shall give due consideration to the
1408 recommendations of the court; provided further, that the department may not refuse out-of-home
1409 placement of a child if the placement is recommended by the court, provided that the court has
1410 made the written certification and determinations required by said section 29C and has provided

1411 the department advance notice and an opportunity to participate in the hearing; provided further,
1412 that the department shall direct the type and length of such out-of-home placement; and provided
1413 further, that the department shall give due consideration to the requests of the child that the child
1414 be placed outside the home of a parent or guardian where there is a history of abuse and neglect
1415 in the home by the parent or guardian.

1416 If the family or child is directed by the court to participate in treatment or services which
1417 are eligible for coverage by an insurance plan or other third-party payer, payment for such
1418 services shall not be denied if the treatment or services otherwise meet the criteria for coverage.

1419 A child who is the subject of an application for assistance shall not be confined in
1420 shackles or similar restraints or in a court lockup facility in connection with any proceedings
1421 under sections 39E to 39I, inclusive. A child who is the subject of an application for assistance
1422 shall not be placed in a locked facility or any facility designated or operated for juveniles who
1423 are alleged to be delinquent or who have been adjudicated delinquent; provided, however, that
1424 such child may be placed in a facility which operates as a group home to provide therapeutic care
1425 for juveniles, notwithstanding that juveniles adjudicated delinquent are also provided care in
1426 such facility.

1427 Any order of disposition pursuant to this section shall continue in force for not more than
1428 120 days; provided, however, that the court which entered the order may, after a hearing, extend
1429 its duration for up to 3 additional 90-day periods, if the court finds that the purposes of the order
1430 have not been accomplished and that any such extension would be reasonably likely to further
1431 those purposes.

1432 No order shall continue in effect after the eighteenth birthday of a child named in an
1433 application for assistance authorized to be filed by a parent, a legal guardian or custodian or a
1434 police officer or after the sixteenth birthday of a child named in a petition authorized to be filed
1435 by a school district.

1436 SECTION 52. Section 39½ of said chapter 119, as so appearing, is hereby amended by
1437 striking out the last paragraph.

1438 SECTION 53. Section 51D of said chapter 119, as so appearing, is hereby amended by
1439 striking out the last paragraph.

1440 SECTION 54. Section 51E of said chapter 119, as so appearing, is hereby amended by
1441 striking out, in line 2, the figure “51D” and inserting in place thereof the following figure:- 51C.

1442 SECTION 55. Chapter 209A of the General Laws is hereby amended by inserting after
1443 section 9 the following section:-

1444 Section 9A. Any on-behalf-of order shall remain in effect after the minor reaches the age
1445 of majority unless otherwise ordered by the court. Upon the minor reaching the age of majority,
1446 the former minor may appear at court on the date and time the order is to expire, and the court
1447 shall determine whether to extend the order for any additional time reasonably necessary to
1448 protect them or to enter a permanent order.

1449 SECTION 56. Section 25 of chapter 209C of the General Laws, as appearing in the 2024
1450 Official Edition, is hereby amended by striking out subsection (d) and inserting in place thereof
1451 the following subsection:-

1452 (d) Proceedings commenced under this section in the probate and family court shall be
1453 governed by the Massachusetts Rules of Domestic Relations Procedure. Proceedings commenced
1454 under this section in the juvenile court shall be governed by the Massachusetts Juvenile Court
1455 Rules for the Care and Protection of Children.

1456 SECTION 57. Section 5E of chapter 210 of the General Laws is hereby repealed.

1457 SECTION 58. Chapter 258E of the General Laws is hereby amended by inserting after
1458 section 11 the following section:-

1459 Section 11A. Any on-behalf-of order shall remain in effect after the minor reaches the
1460 age of majority unless otherwise ordered by the court. Upon the minor reaching the age of
1461 majority, the former minor may appear at court on the date and time the order is to expire, and
1462 the court shall determine whether to: (i) extend the order for any additional time that the court
1463 deems reasonably necessary to protect such person; or (ii) enter a permanent order.

1464 SECTION 59. Sections 2, 43, 44, 49, 50 and 51 shall take effect 1 year after the effective
1465 date of this act.